

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 20
JUDICIAL OFFICER: MELISSA O'CONNELL
HEARING DATE: 08/13/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter.
(Local Rule 3.43(2).)

Note: In order to minimize the risk of miscommunication, parties are to provide an EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED. Dept. 20's email address is: dept20@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 20 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling must be attached to the proposed order when submitted to the Court for issuance of the order.

Discovery Law & Motion

1. 9:00 AM CASE NUMBER: C25-02614
CASE NAME: D&A TRANS, INC., VS. BMW OF NORTH AMERICA, LLC,
COMPEL PLAINTIFF D&A TRANS, INC.'S FURTHER RESPONSES TO REQUEST FOR ADMISSION, SET ONE
FILED BY: BMW OF NORTH AMERICA, LLC,
TENTATIVE RULING:

Defendant's motion to compel further responses to requests for admission, set one, Request No. 18, 19, and 21-25 is GRANTED. Plaintiff is to serve objection-free code-compliant responses by September 4, 2026. Defendant's request for sanctions is also GRANTED; however the court reduces sanctions to \$950. Plaintiff is to pay Defendant sanctions by September 4, 2026.

"Most of the other discovery procedures are aimed primarily at assisting counsel to prepare for trial. Requests for admissions, on the other hand, are primarily aimed at setting at rest a triable issue so that it will not have to be tried. Thus, such requests, in a most definite manner, are aimed at expediting the trial." (*Cembrook v. Superior Court of San Francisco* (1961) 56 Cal.

2d 423, 429, see also C.C.P. §2033.010.)

Here, Plaintiff provided the same objections and no substantive responses to Defendant's Requests for Admission Nos. 18-19 and 21-25. Request Nos. 18, 19, 21, 22, 23, 24 and 25 appear to all relate to Plaintiff's identity as a business and the particular use of the subject vehicle that is the focus of this action. These issues may have an impact on whether any alleged claims against Defendant fall within or beyond the protections of the Song-Beverly Act. As such, they are relevant. Furthermore, the court does not find any of the requests to be vague, ambiguous, or calling for a legal conclusion, rather they appear to be straightforward questions for simple facts such as the number of vehicles registered in Plaintiff's name, whether Plaintiff had a "DBA" and what name the vehicles were registered under. Unlike Defendant's requests for production of numerous documents related to all vehicles registered to Plaintiff that are not the subject vehicle, here, Defendant's request is merely asking Plaintiff to admit or deny whether they have other vehicles registered in their name to establish the nature of Plaintiff's identity. Furthermore, Plaintiff provides no support for their assertion that this information is protected by any privilege or immunity.

As to Request Nos. 24 and 25, Plaintiff provides conflicting information in their Opposition indicating that prior to the hearing they intend to serve supplemental responses to Requests for Admission Nos. 24 through 25 and yet a page later state they did serve the supplemental responses prior to August 13, 2026; this court is confused. (Plaintiff Memorandum of Points and Authorities in Opposition, pp. 2-3.) Additionally, the court is not persuaded by Plaintiff's position that because Defendant "deposed Plaintiff on April 8, 2026, and had a full opportunity to examine Plaintiff regarding the subsequent discovery these admissions address. Defendant has therefore already obtained the information it seeks directly from Plaintiff, suffers no prejudice, and no court intervention is warranted." (*Id.* p. 3.)

It follows that the selection of the method of discovery to be utilized is to be made by the party seeking discovery. It cannot be dictated by the opposing party. (See *Pember v. Superior Court* (1966) 240 Cal.App.2d 888, 889-890; *Darbee v. Superior Court* (1962) 208 Cal.App.2d 680, 686-687.) Moreover, the choice is subject to a trial court's control only to the extent consistent with express statutory limitations. (*Greyhound Corp. v. Superior Court, supra*, 56 Cal.2d at p. 383.) A party is permitted to use multiple methods of obtaining discovery and the fact that information was disclosed under one method is not, standing alone, a proper basis for refusing to provide discovery under another method. (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 218-219.)

Irvington-Moore, Inc. v. Superior Court (1993) 14 Cal. App. 4th 733, 739.

Moreover, with respect to Plaintiff's assertion that Defendant did not engage in reasonable meet and confer efforts, this court is also not persuaded. However, this court would observe that both sides could have made efforts to call each other in a good faith effort to resolve these

discovery disputes and instead relied on simply attempting to communicate via email. First, Defendant's initial letter in February 2026 only referenced issues with Request Nos. 18, 19, 24 and 25, not 21-23, as they now dispute. Second, while Defendant sent three intervening emails with no responses, they do not appear to have ever attempted to contact Plaintiff by phone. Finally, when Plaintiff finally responded March 5, Defendant promptly responded just one day later with availability dates and times. Plaintiff asserts they did not see that follow up email, yet after discovering it, Plaintiff appears to have done no follow up and asserts that Defendant was to blame. There must be a "serious effort at negotiation and informal resolution" and "the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1438-1439.) (See also *Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1293.)

Here, the court finds sanctions appropriate. Failing to respond to an authorized method of discovery is a misuse of the discovery process subject to monetary sanctions. (Code Civ. Proc., §2023.010, subd. (d).) However, the requested amount is unreasonable and the amount is reduced.

Defendant's motion to compel further responses to requests for admission, set one, Request Nos. 18, 19, and 21-25 is GRANTED. Plaintiff is to serve objection-free code-compliant responses by September 4, 2026. Defendant's request for sanctions is also GRANTED; however, the court reduces sanctions to \$950. Plaintiff is to pay Defendant sanctions by September 4, 2026.

2. 9:00 AM CASE NUMBER: C25-02614
CASE NAME: D&A TRANS, INC., VS. BMW OF NORTH AMERICA, LLC,
COMPEL PLAINTIFF D&A TRANS, INC.'S FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE
FILED BY: BMW OF NORTH AMERICA, LLC,
TENTATIVE RULING:

Defendant's Motion to Compel further responses to request for production of documents is GRANTED IN PART AND DENIED IN PART. Defendant's request for sanctions is GRANTED however, the court finds the request unreasonable under the circumstances and has reduced the amount.

Defendant served on Plaintiff 33 Requests for Production of documents. Defendant asserts that Plaintiff has failed to meet and confer in good faith, has not provided verifications for responses previously served, has not provided the documents Plaintiff referenced in their responses and that Plaintiff has not served appropriate supplemental responses to Requests for Production of Documents Nos. 23, 24, 29, 30, 31, and 32.